

2:00 PM

LINE 7

25-CIV-00410              DUJUAN GREEN VS. GENERAL MOTORS, LLC

DUJUAN GREEN  
GENERAL MOTORS, LLC

DAVID N. BARRY  
RYAN KAY

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PLAINTIFF'S MOTION FOR ATTORNEYS' FEES AND COSTS PURSUANT TO CIVIL CODE SECTION 1794(d)

**TENTATIVE RULING:**

On the court's own motion, the court continues the motion to July 21, 2026 at 2:00 p.m.

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2:00 PM

LINE 8

25-CIV-03634

PATRICK BALDWIN VS. UMANG KAJARIA, ET AL.

PATRICK BALDWIN  
UMANG KAJARIA

CHRISTOPHER MADER  
DAVID T. MOUTOUX

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MOTION TO COMPEL RESPONSES TO FORM INTERROGATORIES AND REQUESTS FOR ADMISSION, AND REQUEST FOR SANCTIONS

**TENTATIVE RULING:**

The court DENIES without prejudice plaintiff and cross-defendant Patrick Baldwin's unopposed motion to compel responses to form interrogatories, and requests for admissions and sanctions failure to provide proper notice to defendants and cross-complainants Umang Kajaria and Neha Agarwal Kajaria of the hearing.

In the notice of motion, Baldwin put the date of June 23, 2026 as the hearing date. Then the clerk's office changed the hearing date to June 30, 2026. The court file shows a proof of service filed March 25, 2026, the same date of the filing but endorsed filed-documents are not returned the same day they are filed. Thus, the notice sent to defendants did not have the correct date.

There is no amended proof of service in the court file. Therefore, defendants did not receive proper notice of the hearing date (Cal. Rules of Court, rule 3.1110(b)(1)) and, therefore, the court must deny the motion because it lacks jurisdiction to hear it. (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [“court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.”].)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

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